

STATE OF NEW YORK

10151--A

IN SENATE

April 30, 2026

Introduced by Sen. SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Veterans, Homeland Security and Military Affairs -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the veterans' services law, in relation to establishing a hazardous substance exposure registry

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The veterans' services law is amended by adding a new
2 section 29-f to read as follows:

3 § 29-f. Hazardous substance exposure registry. 1. The commissioner
4 shall on a continuous basis, and in consultation with the commissioner
5 of health, the commissioner of environmental conservation, and the adju-
6 tant general:

7 (a) identify all current or former military installations located
8 within the state where service members, veterans, or their families, are
9 known or more likely than not to have been at risk of exposure to a
10 hazardous substance identified in paragraph (b) of this subdivision.
11 Such military installations shall at a minimum include any such instal-
12 lation registered as an inactive hazardous waste disposal site or brown-
13 field cleanup site under titles thirteen and fourteen of article twen-
14 ty-seven of the environmental conservation law respectively or
15 registered under the federal Comprehensive Environmental Response,
16 Compensation, and Liability Act (42 U.S.C. § 21 9601 et seq.); and

17 (b) identify hazardous substances at such military installations, with
18 consideration given to substances hazardous or acutely hazardous to
19 public health, safety or the environment as defined in section 37-0103
20 of the environmental conservation law, and any medical conditions that
21 may be associated with exposure to them.

22 2. The commissioner shall establish a registry of self-identifying
23 service members, veterans and family members of such individuals who may
24 have experienced exposure to a hazardous substance at a military instal-
25 lation identified in subdivision one of this section that shall include:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (a) the person's name, address, electronic mail address, and phone
2 number;

3 (b) the location of the military installation and time period the
4 person served, worked, or lived at such installation;

5 (c) any medical condition or death of a service member, veteran or
6 family member of such individual that may be related to exposure to a
7 hazardous substance identified in paragraph (b) of subdivision one of
8 this section; and

9 (d) any other information determined relevant by the commissioner.

10 3. The commissioner, in consultation with the commissioner of health,
11 the commissioner of environmental conservation, and the adjutant gener-
12 al, shall establish and maintain a public information program in order
13 to educate and inform service members, veterans, and their families
14 regarding:

15 (a) participation in the registry established pursuant to subdivision
16 two of this section;

17 (b) participation in the health registries maintained by the United
18 States department of veterans affairs, including the:

19 (i) Agent Orange Registry;

20 (ii) Airborne Hazards and Open Burn Pit Registry;

21 (iii) Gulf War Registry;

22 (iv) Ionizing Radiation Registry;

23 (v) Depleted Uranium Follow-Up Program; and

24 (vi) Toxic Embedded Fragment Surveillance Center;

25 (c) information regarding presumptive conditions or diseases deter-
26 mined to be associated with toxic exposure by the United States depart-
27 ment of veterans affairs;

28 (d) the most recent scientific developments on the health effects of
29 exposures to hazardous substances identified in paragraph (b) of subdi-
30 vision one of this section, and toxic exposure including exposure to
31 open burn pit smoke or other airborne hazards;

32 (e) the process for applying to the United States department of veter-
33 ans affairs for service-connected disability compensation for an illness
34 or condition that may be related to an exposure to a hazardous substance
35 identified in paragraph (b) of subdivision one of this section or toxic
36 exposure, including the methods for documenting the illness or condi-
37 tion; and

38 (f) appealing an existing disability rating decision or requesting an
39 upgrade in disability rating from the United States department of veter-
40 ans affairs.

41 4. The commissioner shall make the aggregate data compiled under
42 subdivision two of this section publicly available on the department's
43 website and upon determining there is sufficient data, the commissioner
44 shall prepare or cause to be prepared a study containing:

45 (a) an analysis of such aggregate data;

46 (b) a description of the types and incidences of medical conditions or
47 deaths reported under subdivision two of this section;

48 (c) any explanations for the incidence of medical conditions and any
49 other reasonable explanations for the incidence of such conditions; and

50 (d) any other information or opinions regarding any association
51 between such conditions and exposures to hazardous substances identified
52 in paragraph (b) of subdivision one of this section that the commission-
53 er may determine to be relevant.

54 5. The commissioner shall use the information collected under subdivi-
55 sions one and two of this section, and if applicable, the study prepared
56 under subdivision four of this section to:

1 (a) notify, to the extent practicable, any affected service members,
2 veterans, and family members of such individuals of the risk of expo-
3 sure to hazardous substances identified in paragraph (b) of subdivision
4 one of this section at a military installation identified under subdivi-
5 sion one of this section; and

6 (b) advocate when necessary, at the federal level for veterans,
7 service members and their families who have suffered exposures to
8 hazardous substances identified in paragraph (b) of subdivision one of
9 this section including, if appropriate, seeking recognition for new
10 presumptions of exposure to hazardous substances and service connection
11 for disabilities related to such exposures.

12 6. The information provided to the department pursuant to subdivision
13 two of this section shall be protected as personal confidential informa-
14 tion under article six-A of the public officers law against disclosure
15 of confidential material and be used only for the purposes described in
16 this section. Any publication of the study described in subdivision four
17 of this section shall not include personally identifying information of
18 registry participants.

19 7. As used in this section the following terms shall have the follow-
20 ing meanings:

21 (a) "military installation" means a base, camp, post, station, yard,
22 center, homeport facility for any ship, or other activity under the
23 jurisdiction of the United States department of defense or the United
24 States department of homeland security with respect to installations of
25 the United States coast guard, or the division of military and naval
26 affairs including any leased facility;

27 (b) "toxic exposure" shall have the same meaning as such term is
28 defined in section 101 of title 38 of the United States Code;

29 (c) "service member" means a person who is currently serving in the
30 uniformed services of the United States or in a "force of the organized
31 militia" as such term is defined in section one of the military law; and

32 (d) "veteran" shall mean a person who served on active duty in the
33 uniformed services, or a person who served in a "force of the organized
34 militia" as such term is defined in section one of the military law,
35 regardless of discharge status.

36 § 2. This act shall take effect on the ninetieth day after it shall
37 have become a law.